

Tentative Rulings for August 27, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 692 7358**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2505998	RODRIGUEZ vs YUSTMAN	MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT

Tentative Ruling:

Summary of Recommendation: Plaintiff's requests for judicial notice is granted. Plaintiff's motion for summary adjudication is granted. An OSC re: status of interlocutory judgment and appointment of a referee is to be set.. The parties should submit proposed interlocutory judgments in advance of the hearing.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506321	JONES vs AVELING	MOTION TO VACATE ORDER ON DEMURRER

Tentative Ruling:

The motion is Granted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2603573	DNBA PROPERTIES, LLC vs WESTERN RIVERSIDE COUNTY REGIONAL CONSERVATION AUTHORITY	DEMURRER ON COMPLAINT FOR EMINENT DOMAIN/INVERSE CONDEMNATION

Tentative Ruling:

Defendants' Request for Judicial Notice is Granted. Plaintiff's Request for Judicial Notice is Granted. Sustained without leave to amend Defendants' Demurrer as to the Third Cause of Action (Bane Act) against Defendants City of San Jacinto and Western Riverside County Regional Conservation Authority only; Sustained with leave to amend as against Defendants Aaron Gabbe and Kevin White individually. Overruled the Demurrer as to the First, Second, Fourth, Fifth, and Sixth Causes of Action.